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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER JAMES ROBINSON'S REPLY TO STATE'S OPPOSITION TO MOTION TO CLASSIFY DEFENDANT'S MOTION FILED JANUARY 9, 2026 AS PRIVATE Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through undersigned counsel, hereby files this reply to the *State's Opposition to Motion to Classify Defendant's Motion Filed January 9, 2026 as Private* (Dkt. 340). Mr. Robinson is aware that this Court has declined to maintain as private certain documents filed by the parties and portions of hearings and the subsequent transcripts, even where the parties have stipulated to that classification, even including in instances in which the media representatives have not lodged an objection. Nonetheless, Mr. Robinson maintains that the underlying motion and attached exhibits should be classified as private.

The State's primary argument in support of its opposition to the classification proposed by Mr. Robinson is that he has not briefed the issue of the ultimate admissibility of the forensic findings in the report referenced in the motion. This argument is unavailing, given the status of the forensic analysis and of these proceedings. The State is well aware, as was noted on the record during the hearing on February 3, 2026, that Mr. Robinson has not yet received the laboratory materials necessary to assess if there should be an evidentiary challenge to *any* of the forensic testing results received thus far in discovery. Furthermore, the underlying issue in the motion is the potentially destructive testing of the evidence at issue, which itself may also impact the admissibility of the same evidence. Thus, any argument concerning admissibility is premature, as is the public disclosure of the evidence at this stage of proceedings. *See, e.g., Kearns-Tribune Corp., Publisher of Salt Lake Tribune v. Lewis*, 685 P.2d 515, 519 (Utah 1984) (right of access to evidence outweighed by reasonable probability of prejudice in publicizing transcript of hearing to "screen out unreliable or illegally obtained evidence")

There are two overriding considerations motivating Mr. Robinson's request. First, further testing of the evidence at issue may alter the evidence and impact future admissibility litigation. Second, given the media's exploitation of this case for profit-making purposes, an interest not

protected by the First Amendment, it is Mr. Robinson's position that neither party should seek to unnecessarily publicize an incomplete evidentiary picture in advance of this Court's admissibility determinations. Premature publication of incomplete and potentially unreliable evidence does not promote the paramount goals of ensuring that Mr. Robinson receives a fair trial and a highly reliable penalty phase, should either become necessary. *See* U.S. Const. VI, VIII; Utah Const. art. I, §§ 9, 12. Premature publication of incomplete and potentially unreliable evidence merely encourages the public, including potential jurors, to draw conclusions about this case that are not based upon evidence actually presented to a jury.

Mr. Robinson's unqualified rights to a fair trial and to a reliable penalty phase overcome the qualified right of access. *See Supernova Media, Inc. v. Pia Anderson Dorius Reynard & Moss, LLC*, 2013 UT 7, ¶ 58, 297 P.3d 599 (court has discretion to seal documents if right of access is outweighed by competing interests; "Competing interests include protecting the integrity of ongoing investigations and proceedings, the privacy of those involved, . . . the defendant's right to a fair trial" (quoting Utah Code J. Admin. R. 4-202(2))).

RESPECTFULLY SUBMITTED this 5th day of February, 2026.

/s/ Kathryn N. Nester

Kathryn N. Nester

/s/ Michael N. Burt

Michael N. Burt

/s/ Richard G. Novak

Richard G. Novak

/s/ Staci Visser

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CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 5th day of February, 2026, which served all attorneys of record.

I also certificate that on February 5, 2026, a copy of the foregoing was emailed to the following counsel for their respective media entities:

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